to the Court that Defendant was not arguing that Plaintiff must name a specific individual, but rather must allege sufficient facts to show that there were employees doing substantially similar work under substantially similar conditions who were paid more.

Here, Plaintiff was hired as the vice president of human resources. (Comp. ¶ 7.) "Eventually, Defendant would rely on Plaintiff for human resources, accounting, corporate compliance, and information technologies (IT)." (Comp. ¶13.) Plaintiff alleged that she "was simultaneously performing three jobs" and "was paid significantly less than male employees who had significantly less responsibility." (Comp. ¶¶ 73-74.)

The Court finds that Plaintiff has not alleged facts showing that there was an employee doing substantially similar work under substantially similar conditions who was paid more than Plaintiff. The allegation that Plaintiff was paid less than male employees with significantly less responsibility is insufficient. Having responsibility is not the same as doing substantially similar work. **The demurrer to Cause of Action Five is sustained**. This is the first challenge to this cause of action and Plaintiff has requested leave to amend. Therefore, Plaintiff is given leave to amend.

Plaintiff must file and serve an amended pleading withing 15 days of service of notice of entry of this order.

**7. 9:00 AM CASE NUMBER: C25-01808**
**CASE NAME: HARRY KARRIS VS. JILL CHERNE**
***HEARING ON MOTION IN RE: QUASH SUBPOENAS**
**FILED BY:**
***<u>*TENTATIVE RULING:*</u>***

The unopposed motion of Betty Jean Harris to quash six subpoenae purportedly served on her behalf, copies of which are attached to the Declaration of Tanner D. Brink in Support of Motion to Quash, filed November 12, 2025 in this action, is continued for the purpose of requiring counsel for Ms. Betty Jean Harris, counsel for Harry Karris, and counsel for Defendant Jill Elizabeth Cherne to meet and confer regarding this issue.

Counsel Brink is also ordered to serve a copy of the Motion to Quash and all supporting papers on Defendant Jill Elizabeth Cherne.

**The hearing** is continued to **Friday, June 26, 2026 at 9:00 a.m. in Department 32**. The parties are ordered to file a joint statement regarding their meet and confer efforts nine (9) court days prior to the hearing on June 26, 2026.

**8. 9:00 AM CASE NUMBER: C25-03363**
**CASE NAME: HARUTYUN KHOTSURYAN VS. MERCEDES-BENZ USA, LLC,**
***MOTION/PETITION TO COMPEL ARBITRATION**
**FILED BY: MERCEDES-BENZ USA, LLC,**
****TENTATIVE RULING:****

Defendant, Mercedes-Benz USA, LLC (“defendant” or “Mercedes”), moves the Court under both the California Arbitration Act and the Federal Arbitration Act (“FAA”) to compel plaintiff to arbitrate the claims set forth in plaintiff’s complaint, and to stay this action pending the outcome of arbitration.

The motion is **granted**. Parties shall submit the matter to arbitration. This proceeding is hereby stayed. **The Court vacates the June 17, 2026 date for case management conference and sets a case management conference on November 9, 2026, at 8:30 a.m.** for a status update on arbitration.

**Background**

Plaintiff brought suit on January 26, 2026, alleging that on or about October 21, 2023, plaintiff leased a 2023 Mercedes-Benz EQS 450 and the vehicle was defective. (See Complaint, ¶2.) The complaint asserts three causes of action under the Song-Beverly Act, one for breach of the express warranty, one for breach of implied warranties, and one for breach of Civil Code § 1793.2(b), which requires manufacturers to timely perform warranty repairs.

In response to the complaint, defendant filed this motion to compel arbitration based on provisions found in the Motor Vehicle Lease Agreement plaintiff signed with Mercedes Benz of Walnut Creek, the dealer from which plaintiff leased the vehicle. Defendant argues both that it is a third party beneficiary, and that plaintiff is estopped from denying the agreement. In support of its motion, defendant provides a declaration from counsel that attaches plaintiff’s complaint as well as a signed copy of the lease agreement.

The arbitration agreement contained in the lease agreement states, under “Important Arbitration Disclosures:”

> Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents , successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a “Third-Party Beneficiary”), which arises out of […] this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third-Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action.
>
> […]
>
> This lease evidences a transaction involving interstate commerce. Any

> arbitration under this lease shall be governed by the Federal Arbitration Act (9 USC 1, *et seq*.). Judgment upon the award rendered may be entered in any court having jurisdiction.

Defendant further contends that any question regarding enforceability of the arbitration clause should be left to the arbitrator.

Plaintiff opposes the motion, arguing Mercedes cannot compel arbitration pursuant to the lease. Plaintiff argues Mercedes is not a third-party beneficiary and challenges defendant's reliance on the concept of estoppel. In support of the opposition, plaintiff provides a memorandum of points and authorities supported by a declaration by counsel, a request for judicial notice, and evidentiary objections to Mercedes' evidence in support of the motion.

On reply Mercedes argues that it is entitled to compel arbitration via both a third-party beneficiary theory as well as estoppel, that this Court should "not follow" *Ford*, and that the vehicle lease agreement is admissible.

**Evidentiary Matters**

Plaintiff requests judicial notice of three case authorities including (1) *Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, issued by the California Court of Appeal, Second Appellate District; (2) *Kielar v. Superior Court* (2023) 94 Cal.App.5th 614; and (3) *Ngo v. BMW of N. Am., LLC* (9th Cir. 2022) 23 F.4th 942. The request is **granted**, though the Court notes it is unnecessary to formally request judicial notice of published cases, which must be judicially noticed. (Evid. Code, § 451 ["Judicial notice shall be taken of […] [t]he decisional, constitutional, and public statutory law of this state and of the United States […].")

Plaintiff's evidentiary objections to the lease agreement itself are **overruled** for the reasons discussed in Mercedes' reply brief. (7:15-8:4.)

**Standard**

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) Accordingly, the threshold question presented by a motion or petition to compel arbitration is whether there is an agreement to arbitrate. (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.) California law determines the answer to this threshold question. (*Ibid*.) Mutual assent, or consent, of the parties is essential to the existence of a contract, and consent is not mutual, unless the parties all agree upon the same thing in the same sense. (*Ibid*., see also Civ. Code, §§ 1550, 1580, 1565.) "The intention of the parties is to be ascertained from the writing alone, if possible." (Civ. Code, § 1639.)

"The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC,* (2012) 55 Cal.4th 223, 236.)

**Analysis**

***A. Ford Motor Warranty Cases (2025) 17 Cal.5th 1122***

As a preliminary matter, the Court notes Mercedes' motion fails to address *Ford Motor Warranty Cases*, a unanimous Supreme Court found that the "third party beneficiary" language in an arbitration clause was not properly read as binding the buyer of the vehicle to arbitrate with unnamed third parties. (*Ford Motor Warranty Cases,* supra, 17 Cal.5th at 1127.)

Plaintiff also, in the opposition, fails to address that California Supreme Court authority despite heavily relying on the appellate court ruling issued in 2023, which was affirmed. (*Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324.) The appellate court had determined that Ford Motor Company was not a third-party beneficiary, stating "[i]f the signatories had intended to benefit [Ford Motor Company], such a purpose would have been easy to articulate. *They could have simply named FMC—directly or by class as the vehicle's manufacturer—as a person entitled to compel arbitration*. But they did not." (*Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, 1339 (emphasis added).)

The Supreme Court affirmed the Appellate Court specifically noting, "Ford, the manufacturer, was not a party to, *or named in*, the sales contracts." (*Ford Motor Warranty Cases* (2023) 17 Cal.5th 1122, 1126.) The Supreme Court adopted the appellate court's assessment that "The sales contract says nothing of binding the purchaser to arbitrate with the universe of unnamed third partes." (*Id*. at 1130.)

Here, the arbitration clause is strikingly similar to that in *Ford Motor Warranty Cases*, which required arbitration of "[a]ny claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, and the arbitrability of the claims or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to […] this contract or any resulting transaction or relationship (including any such relationship with third parties who did not sign this contract)." (*Ford Motor Warranty Cases*, *supra,* 17 Cal.5th at 1127.)

However, in contrast, the arbitration clause here does specify Mercedes as a third-party beneficiary, directly addressing the Supreme Court's concerns of subjecting a party to arbitrate with a "universe of unnamed third parties." (*Id*. at 1130; See also Declaration of Daniell K. Newman in Support of Motion, Ex. B, pp. 4-5.) Thus, the Court finds defendant was a specifically designated third party beneficiary (with standing to enforce contractual provisions) in the contract.

***B. Existence of Agreement to Arbitrate***

A party moving to compel arbitration bears an initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166.) The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.) Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. (*Condee v. Longwood Management Corp*. (2001) 88 Cal.App.4th 215, 219; see also Cal. Rules of Court, rule 3.1330 ["The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference."].)

"If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion." (*Gamboa, supra,* 72 Cal.App.5th at 165.)

Defendant here provides a written agreement purportedly signed by plaintiff with its moving papers. (Declaration of Daniell K. Newman in Support of Motion, Ex. B.) The agreement is between plaintiff on the one hand, and "Mercedes Benz of Walnut Creek," on the other, not the moving defendant. Still, the terms of the arbitration clause itself name defendant Mercedes as a third-party beneficiary.

Among the several theories that bind nonsignatories to an agreement is that of a third-party beneficiary. (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513, citations omitted [mechanisms to bind nonsignatories include: "(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary"].) "A third-party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit." (*Jensen v. U-Haul Co. of California* (2017) 18 Cal. App. 5th 295, 301.)

Under the standard set forth in *Gamboa*, plaintiff's objections to the lease agreement itself is insufficient to avoid arbitration. (*Gamboa, supra,* 72 Cal.App.5th at 165.) Despite plaintiff's objections to the document itself, plaintiff does not present any statements denying signing the agreement. Nor does the opposition argue plaintiff never entered into the agreement, which specifically defines Mercedes as a "Third-Party Beneficiary." As noted in the reply, the cases cited by plaintiff did *not* involve the vehicle manufacturer being named as a third-party beneficiary like we have here.

The agreement here not only names Mercedes as a third-party beneficiary, but specifically indicates third-party beneficiaries may compel arbitration. Accordingly, Mercedes has met its burden to show agreement to arbitrate.

Plaintiff's incorrectly asserts that "MBUSA relies extensively on *Felisilda v. FCA US LLC* (2020) 53 Cal.App.5th 486 ("*Felisilda*") to establish that it has the standing to Compel Arbitration as a non-signatory." On the contrary, the moving papers contain *no* mention of *Felisilda*, which predates the California Supreme Court decision in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1129, 1136, which settled a question about whether an *unnamed* manufacturer could compel arbitration under and estoppel theory, the issue in *Felisilda*.

Accordingly, Mercedes is a third-party beneficiary entitled to enforce the agreement. Because the agreement requires arbitration of "any claim or dispute," the Court need not proceed to analyze any separate estoppel argument based on plaintiff's contention that the claims here "are not intimately founded in the lease agreement." (Opposition, 11:18-14:24.)

***C. The FAA Governs***

Mercedes argues that, based on both the terms of the agreement, as well as the interstate nature of its business, the FAA governs. Plaintiff does not disagree on this point. The application of federal law does not have the effect sought in the opposition, however. Plaintiff suggests that, because federal law governs, the Court should follow *Ngo v. BMW of N. Am., LLC* (9th Cir. 2022) 23 F.4th 942, a case from the Ninth Circuit that, like *Felisilda*, pre-dates the California Supreme Court's decision in *Ford Motor Warranty Cases, supra.* In *Ngo*, the agreement containing an arbitration provision did *not* name the manufacturer as an intended third-party beneficiary so the case has little persuasive value here.

On the other hand, it is worth noting that if the FAA applies, as agreed by parties here, it would preempt any statutory exceptions to arbitration. So, to the extent that is what plaintiff seeks to establish in asserting the claims arise not from the leave, but from Mercedes' "statutory obligations under the Song-Beverly Act," (Opposition, 11:25) the argument fails to defeat the motion.

***D. Enforceability / Delegation***

Defendant argues the issue of enforceability has been delegated to the arbitrator. (Memorandum of Points and Authorities in Support of Motion, 14:13-15:15.) Plaintiff does not respond on this issue. Defendant does not quote the entirety of the paragraph containing what Mercedes contends is a delegation clause. To the extent that one exists, it is buried in a run-on sentence that the Court has reviewed and found not to be "clear and unmistakable."

The default rule is that the court engages in the enforceability analysis unless parties have "clearly and unmistakably" delegated such issues to the arbitrator. (See *Chin v. Advanced Fresh Concepts Franchise Corp.* (2011) 194 Cal.App.4th 704, 709.) Accordingly, if any separate enforceability defense had been raised, it would be the Court's to analyze. Plaintiff raises *no* real enforceability defense aside from claiming that Mercedes is not a third-party beneficiary, which has been addressed above. Accordingly, the motion must be granted.

**9. 9:00 AM CASE NUMBER: C25-03386**
**CASE NAME: CECILY TAYLOR VS. STEVE SMITH**
**HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT IMPOSE MONETARY SANCTIONS OF UP TO $1,000 ON PLAINTIFF CECILY TAYLOR FOR SUBMITTING NON-EXISTENT, FALSE LEGAL AUTHORITY TO THE COURT & MISREPRESENTING THE HOLDINGS AND CONTENT OF EXISTING LEGAL AUTHORITY TO THE COURT.(PER TR ON 4/10/26)**
**FILED BY: TAYLOR, CECILY**
****TENTATIVE RULING:****

The Court did not receive any response from Plaintiff regarding the Order Show Cause Issued in its ruling on April 10, 2026.

On its own motion the court will **continue this hearing to Friday June 12, 2026 at 9:00 a.m.**